

25STCP05004 25STCP05004

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 25STCP05004 Hearing Date: August 19, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Meyer, Olson, Lowy &

Meyers, LLP

;

Petitioner,

vs.

Scott Gladstone

;

Respondent.

Case No.:

25STCP05004

Hearing Date:

August 19, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

Petition
to Compel Arbitration and Appoint Arbitrator

MOVING PARTY: Petitioner Meyer, Olson, Lowy, &
Meyers, LLP

RESPONDING
PARTY: No response

Petition to Compel
Arbitration and Appoint Arbitrator

The court considered the moving
papers filed in connection with this petition.

DISCUSSION

Petitioner Meyer,
Olson, Lowy, & Meyers, LLP ("Petitioner") petitions the court for an order (1)
compelling respondent Scott Gladstone ("Respondent") to submit the parties'
dispute concerning Petitioner's claim for fees to binding arbitration, and (2) appointing
an arbitrator.

“ “The party seeking to compel
arbitration bears the burden of proving the existence of an arbitration
agreement, while the party opposing the petition bears the burden of
establishing a defense to the agreement’s enforcement.” ” (Beco v. Fast Auto Loans (2022) 86
Cal.App.5th 292, 302.) To
determine the existence of an arbitration agreement, the court uses “a three-step burden-shifting process.” (Iyere v. Wise
Auto Group (2023) 87
Cal.App.5th 747, 755.) “The arbitration proponent must first recite

verbatim, or provide a copy of, the alleged agreement.” [Citations.] A movant can bear this initial burden ‘by attaching a copy of the arbitration

agreement purportedly bearing the opposing party’s signature.” (Ibid. [internal citations omitted].) “If the

movant bears its initial burden, the burden shifts to the party opposing

arbitration to identify a factual dispute as to the agreement’s existence” (Ibid.) If the opposing party meets its burden to “submit sufficient evidence to create a

factual dispute” as to the

existence of the agreement, the burden shifts back to the arbitration

proponent, who retains the ultimate burden of proving its existence by a

preponderance of the evidence. (Ibid.;

Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158,

165-166.)

First, the court

finds that Petitioner has met its burden to prove the existence of an arbitration agreement to arbitrate the parties’ dispute concerning Petitioner’s claim for fees by presenting a copy of the signed arbitration agreement in its Petition.

(Petition, Ex. A.)

Second, the court

finds that Respondent has not met his burden to identify a factual dispute as to the arbitration agreement’s existence.

The court also

finds that Respondent has not met his burden of establishing a defense to enforcement of the arbitration agreement.

The court

therefore grants the petition to compel arbitration. (Code Civ. Proc., §1281.2.)

Petitioner also

requests that the court appoint an arbitrator. The appointment of an arbitrator is governed by Code of Civil Procedure section 1281.6. Pursuant to section 1281.6, the court nominates the following five persons from lists of persons supplied by the parties: Hon. Hank

Goldberg (Ret.), Hon. Scott Gordon (Ret.), Hon. Margo Hoyt (Ret.), Hon. Thomas Trent Lewis (Ret.), and Hon. Roy Paul (Ret.).[1]

(Petition, filed December 22, 2025, p, 2:17-20.) The parties may within five days of receipt of notice of the court’s nominees set forth above jointly

select the arbitrator whether or not the arbitrator is among the nominees. (Code Civ. Proc., § 1281.6.) If the parties fail to select an arbitrator within the five-day period, either party may file an ex parte application with the court to request that the court appoint the arbitrator from the nominees pursuant to section 1281.6.

ORDER

The court GRANTS petitioner Meyer, Olson, Lowy, & Meyers, LLP's petition to compel arbitration.

The court orders petitioner Meyer, Olson, Lowy, & Meyers, LLP and respondent Scott Gladstone to arbitrate the parties' dispute concerning Petitioner's claim for fees pursuant to the petition filed December 22, 2025.

The court orders petitioner Meyer, Olson, Lowy, & Meyers, LLP to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 19, 2026

Robert B. Broadbelt III

Judge of the Superior Court

[1] Respondent did not provide a list of persons he requests the court to appoint as arbitrator.